

Arif Hussain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 November 2022 · Writ-C No. 32242 of 2022 · WRIT - C No. 32242 of 2022 · **Writ disposed of; supply restored; Executive Engineer to decide Clause 6.5 representation.**

HEADNOTE

Disconnection of a later connection for arrears on a deceased prior consumer's connection is a bill-recovery dispute for the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court restored the petitioner's 2015 supply and directed an expeditious Clause 6.5 decision, including a factual enquiry into how that connection was granted while old dues remained.

FACTUAL SUMMARY

The petitioner, Arif Hussain, held electricity connection No. 674333898 at House No. 23/509, Wazirpura, Agra, granted in 2015. Torrent Power Limited disconnected that supply on 13 October 2022, citing arrears on connection No. 670015382 standing in the name of Abdul Shakoor, the petitioner's maternal grandfather, who was said to have died about fifty years earlier. The petitioner contended that Section 56 of the Electricity Act, 2003, and a prior decision of the High Court, barred recovery of those dues from the occupant of a later connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-recovery

HOLDING

A dispute over recovery of electricity dues, including arrears on a prior connection in the name of a deceased occupant, requires a factual enquiry before the Executive Engineer under Clause 6.5. The Court directed a representation to be decided expeditiously—including how a 2015 connection was granted while those dues remained—and ordered Torrent Power Limited to restore the petitioner's disconnected supply in the meantime, with current bills to be paid and the enquiry uninfluenced by the Court's observations. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The challenge to disconnection for a deceased prior consumer's arrears, including the Section 56 bar, was treated as a Clause 6.5 bill-recovery dispute for the Executive Engineer rather than decided on the writ. ¶ 1

clause-6.5-pending-representation-to-be-decided Counsel having stated that a representation was already pending, the Court directed a representation within a week and obligated the Executive Engineer to decide all objections expeditiously. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SECTION 56 OF THE ELECTRICITY ACT, 2003 BARS RECOVERY OF ARREARS ON A CONNECTION STANDING IN THE NAME OF A CONSUMER SAID TO HAVE DIED ABOUT FIFTY YEARS EARLIER. Raised with reference to an unnamed prior decision of the Court; left for the Executive Engineer's Clause 6.5 enquiry.

¶ 1

NOT DECIDED — WHETHER, AFTER THE ORIGINAL CONSUMER'S DEATH, THOSE ARREARS CAN BE RECOVERED FROM AN OCCUPANT WHO HOLDS A LATER CONNECTION IN HIS OWN NAME.

¶ 1

